



PHASE 04 · COVERAGE COMPARISON

Six-Insurer Coverage Comparison

Clean one-page at-a-glance matrix, with a detailed legal appendix

Wordings reviewed

- Tokio Marine HCC — Media & Music Combined
- Tysers “Focus” Combined ‘All Risks’ Media policy
- Media & Entertainment by Yutree
- Liberty Entertainment Combined Policy
- Allianz Entertainment ‘Complete’ Policy
- AXA XL Media & Entertainment Combined Corporate (Crisis Management & Special Risks)
- Entertainment Elite Policy (v3.2)

TMHCC Media & Music Combined (final, commit 58b8340) vs six competitor wordings.

Legend: ✓ covered · ● partial/conditional/sub-limited · ✗ not identified/excluded · ? unclear/requires review.

No cover invented; TMHCC is not shown as winning a row the wording does not support (e.g. abuse).

At-a-glance coverage matrix

✓ Covered ● Partial / conditional / sub-limit ✗ Not covered / not identified ? Unclear – requires review

Coverage feature	TMHCC	Tysers	Yutree	Liberty	Allianz	AXA XL	Ent.Elite	Key note / practical impact
Premises buildings & contents (MD)	✓	✓	✓	✓	✓	✓	✓	All six; TMHCC absorbs IT property here.
Production / entertainment equipment	✓	✓	✓	●	✓	✓	✓	Liberty via specified items.
Business interruption	✓	✓	✓	✓	✓	✓	✓	Allianz/AXA XL name more BI heads.
Terrorism	✓	✗	✓	✓	✓	✗	✓	Tysers & AXA XL exclude outright.
Employers' Liability	✓	✓	✓	✓	✓	✓	✓	Statutory EL by all (≈GBP 10m).
Public Liability	✓	✓	✓	✓	✓	✓	✓	All; competitors combine Public+Products.
Products Liability	✓	✓	✓	✓	✓	✓	✓	All.
Abuse / molestation (PL) — covered?	✗	?	✗	?	?	✗	?	TMHCC/Yutree/AXA XL EXCLUDE; others silent. See §A2.
Money (incl. touring/events)	✓	✓	✓	✓	✓	●	✓	TMHCC restructured Premises + Touring/Events.
Goods in Transit	✓	✗	✓	✗	✓	✗	✗	Dedicated GIT: TMHCC, Yutree, Allianz.
Loss of Licence	✓	✗	✗	✗	✗	✗	✗	UNIQUE to TMHCC.
Production Indemnity	✓	✓	✓	✗	✗	✗	✗	TMHCC, Tysers, Yutree.
Media Liability / PI / E&O	✓	✓	✓	✗	✗	✗	✗	Tysers PI worldwide + patents; see §A1.
Commercial Legal Expenses	✓	✗	✗	✗	✗	✗	✗	UNIQUE to TMHCC.
Management Liability (D&O/EPL)	✓	✗	✗	✗	✗	✗	✗	UNIQUE to TMHCC.
Standalone Cyber Liability	✓	✗	●	✗	✗	✗	✗	UNIQUE; Yutree breakdown only; AXA XL excludes.
Personal Accident & Business Travel	✗	✓	●	✗	?	✗	✗	GAP: Tysers extensive; Yutree assault.
Worldwide PI territory (incl. option)	●	✓	●	✗	✗	✗	✗	Tysers worldwide; TMHCC optional (sign-off).

Footnotes: §A1 Media/PI — Tysers PI is worldwide and covers patents; TMHCC S12 is jurisdiction-limited (default ex-US/Canada) and excludes patents. §A2 Abuse — TMHCC, Yutree and AXA XL EXCLUDE abuse; Tysers, Liberty, Allianz and Entertainment Elite carry no express abuse exclusion (silent → not affirmatively granted). 'Liberty/Allianz/AXA XL/Ent.Elite' are property/Bi/liability packages with no media/PI/cyber/legal/management cover.

Appendix — detailed coverage & legal notes

App. 1 — Section / cover availability (15 sections + PA)

Feature	TMHCC	Tysers	Yutree	Liberty	Allianz	AXA XL	Ent.Elite	Note
S1 · Business “All Risks” (premises buildings & contents)	✓	✓	✓	✓	✓	✓	✓	All six offer premises/contents material damage on an all-risks basis. Allianz, Liberty and AXA XL are property-led packages with granular MD specifications; TMHCC consolidates IT/premises cover here.
S2 · Property & Equipment “All Risks” (production/entertainment equipment)	✓	✓	✓	⦿	✓	✓	✓	Owned and hired-in production/entertainment equipment. Tysers (Production Property), Yutree (Production property), Allianz (Specified All Risks), AXA XL (‘Technical Equipment’ within Material Damage). Liberty covers entertainment equipment via specified Schedule items.
S3 · Business Interruption “All Risks”	✓	✓	✓	✓	✓	✓	✓	All offer BI. Allianz is structurally broader (splits Increased Cost of Working and Book Debts into discrete sections). AXA XL has a full BI section (incl. Rent Receivable / Turnover). Confirm TMHCC S3 expressly covers ICOW/AICOW and book debts.
S4 · Terrorism	✓	✗	✓	✓	✓	✗	✓	TMHCC, Yutree, Liberty and Allianz provide terrorism cover. Tysers EXCLUDES terrorism (no buy-back). AXA XL EXCLUDES terrorism absolutely (Policy Exclusion 3.4, ex-Employers’ Liability) — client would need standalone Pool Re.
S5 · Employers’ Liability	✓	✓	✓	✓	✓	✓	✓	Statutory EL provided by all six (typically GBP 10m). Broadly equivalent. AXA XL = sub-section 7C.
S6 · Public Liability	✓	✓	✓	✓	✓	✓	✓	Provided by all. Competitors combine Public & Products; TMHCC splits Public (S6) and Products (S7). AXA XL = sub-section 7A.
S7 · Products Liability	✓	✓	✓	✓	✓	✓	✓	Provided by all (combined with Public in the competitor wordings). AXA XL = sub-section 7B.
S8 · Money	✓	✓	✓	✓	✓	⦿	✓	Money cover provided by all. AXA XL provides Money as a sub-limited ‘Money’ specification WITHIN the Material Damage section (schedule-driven) rather than a standalone section.
S9 · Goods in Transit	✓	✗	✓	✗	✓	✗	✗	TMHCC, Yutree (GIT section) and Allianz (Own Goods in Transit) provide GIT. Tysers, Liberty and AXA XL do NOT have a dedicated GIT section.
S10 · Loss of Licence	✓	✗	✗	✗	✗	✗	✗	UNIQUE to TMHCC across all six competitors. Premises-licence loss cover under the Licensing Act 2003 — highly relevant for venues/festivals.
S11 · Production Indemnity “All Risks”	✓	✓	✓	✗	✗	✗	✗	TMHCC, Tysers (Multimedia & Producers Indemnity) and Yutree (Production Indemnity) cover production costs / cast / negatives. Liberty, Allianz and AXA XL do NOT offer production indemnity.
S12 · Media Liability / Professional Indemnity (E&O)	✓	✓	✓	✗	✗	✗	✗	The heart of a media wording. TMHCC (S12), Tysers (PI/E&O) and Yutree (PI-Media + PI-Events) provide it. Liberty, Allianz and AXA XL provide NO media/PI/E&O cover — despite AXA XL’s ‘Media & Entertainment’ branding.
S13 · Commercial Legal Expenses	✓	✗	✗	✗	✗	✗	✗	UNIQUE to TMHCC (ARAG-style legal expenses). No competitor wording includes a legal-expenses section.
S14 · Management Liability (D&O / EPL etc.)	✓	✗	✗	✗	✗	✗	✗	UNIQUE to TMHCC. No competitor wording includes management-liability cover.
S15 · Cyber Liability (standalone)	✓	✗	⦿	✗	✗	✗	✗	UNIQUE — TMHCC ‘CyberGuard’ is a genuine standalone cyber policy. Yutree offers Computer Breakdown only. AXA XL has NO cyber section and a broad cyber EXCLUSION (only a Data Protection

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								Act 2018 carve-out within Public Liability). Others: none.
(+) Personal Accident & Business Travel	X	✓	●	X	?	X	●	GAP for TMHCC: no standalone PA/business-travel section. Tysers (PA & Business Travel) is extensive; Yutree covers PA assault. Allianz references a 'Personal Accident' section in its exclusions (not in the cover list – review). AXA XL has NO personal-accident cover.

App. 2 — Media Liability / PI / E&O feature detail

Liberty, Allianz, AXA XL and Entertainment Elite provide NO media/PI cover.

Feature	TMHCC	Tysers	Yutree	Liberty	Allianz	AXA XL	Ent.Elite	Note
Defamation / libel / slander / malicious falsehood	✓	✓	✓	✗	✗	✗	✗	TMHCC and Yutree cover 'unintentional' defamation; Tysers covers unless the statement was known/ought-to-have-been-known to be defamatory. Broadly equivalent. Liberty/Allianz/AXA XL: no PI.
IP infringement – copyright / trademark / passing off	✓	✓	✓	✗	✗	✗	✗	All three media wordings cover unintentional IP infringement incl. passing-off.
Patent infringement	✗	✓	✗	✗	✗	✗	✗	Tysers (clause 8.9) expressly includes PATENT infringement within IP cover. TMHCC and Yutree EXCLUDE patents. TMHCC is sensibly more restrictive (patents are hard to underwrite).
Breach of confidence / invasion of privacy	✓	✓	✓	✗	✗	✗	✗	Covered by all three media wordings (TMHCC/Yutree on an 'unintentional' basis; Tysers clauses 8.11/8.12).
Breach of professional duty / negligence / E&O	✓	✓	✓	✗	✗	✗	✗	Core E&O. Covered by all three media wordings.
Dishonesty / fraud of employees (write-back)	✓	⦿	✓	✗	✗	✗	✗	TMHCC (Insuring Clause 1.I) and Yutree (Dishonesty & fraud cover) grant an express write-back for employee dishonesty; Tysers via its Criminal/Malicious Acts exclusion with an employee carve-out.
Defence costs payable IN ADDITION to the limit	✓	✓	✓	✗	✗	✗	✗	All three pay defence costs in addition, with proportionate reduction once the limit is exceeded.
Territorial / jurisdiction scope	⦿	✓	⦿	✗	✗	✗	✗	Tysers PI is WORLDWIDE. TMHCC limits cover to the Schedule Geographical Limits and EXCLUDES actions brought outside the stated Jurisdiction (default worldwide ex-US/Canada). Yutree restricts US/Canada. Competitor (Tysers) broader.
Data-protection defence costs	✓	⦿	✗	✗	✗	⦿	✗	TMHCC grants Data Protection Defence Costs (GBP 250k). Yutree EXCLUDES breach of data-protection law in PI. AXA XL provides only a DP Act 2018 defence-costs extension within Public Liability (not a media/PI grant). TMHCC clearer/broader.
Criminal / statutory prosecution defence costs	⦿	✓	✓	✗	✗	✗	✗	Tysers pays statutory defence costs (Bribery/Corporate Manslaughter/H&S/CDM — GBP 1m). Yutree pays Criminal Prosecution Defence Costs (GBP 250k). TMHCC S12 grants only Data-Protection defence costs (broader criminal cover sits in S13/S14).
Reputation management / crisis-PR costs	✓	✗	✓	✗	✗	✗	✗	TMHCC and Yutree both grant Reputation Management costs (GBP 250k). Not identified in Tysers S8.
Withdrawal / alteration of content (incl. ASA/OFCOM)	✓	✗	✓	✗	✗	✗	✗	TMHCC and Yutree both grant Withdrawal of Content (GBP 250k) including ASA/OFCOM complaints. Not identified in Tysers.
Rectification / mitigation costs	✓	✓	✓	✗	✗	✗	✗	All three pay rectification/mitigation costs that avert a larger claim (TMHCC Rectification; Tysers 8.14; Yutree Mitigation).
Costs to PROSECUTE infringement of the insured's own IP	✓	✗	✓	✗	✗	✗	✗	TMHCC (GBP 25k) and Yutree (IP-rights prosecution) fund pursuit of the insured's own IP, subject to a supporting legal opinion. Not identified in Tysers.
Distributors & purchasers extension	✗	✓	✗	✗	✗	✗	✗	Tysers (clause 8.7) extends indemnity to purchasers/co-producers/distributors of the insured's media material (up to 5x the limit). Not provided by TMHCC or Yutree.

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Journalistic source-protection / challenge to subpoena	✗	✓	✗	✗	✗	✗	✗	Tysers (clause 8.13) funds legal costs to challenge a subpoena requiring disclosure of a source. Not provided by TMHCC or Yutree — broker-sensitive for editorial/news clients.
Representation costs at investigations / inquiries	🕒	✓	🕒	✗	✗	✗	✗	Tysers (8.15, GBP 25k) covers representation at official examinations/inquiries. TMHCC provides this only via Data-Protection defence; Yutree via Criminal-Prosecution defence.
Loss of documents	✓	✓	✓	✗	✗	✗	✗	Covered by all three media wordings (TMHCC Insuring Clause; Tysers 8.10 GBP 1m; Yutree Loss of Documents, GBP 500 excess).
Unintentional virus transmission	✓	✓	🕒	✗	✗	✗	✗	TMHCC (GBP 500k sub-limit, targeted-virus write-back) and Tysers (8.16, GBP 250k) cover unintentional virus transmission. Yutree treats virus within its broader cyber exclusion.
Mergers & acquisitions / subsidiary auto-acquisition	✓	?	✓	✗	✗	✗	✗	TMHCC and Yutree both auto-include newly created/acquired entities below a 20% turnover threshold, with notification above. Tysers position requires review.
Pollution write-back (negligent advice)	✗	✗	🕒	✗	✗	✗	✗	Yutree grants a limited pollution write-back where the cause is a specific act/error/omission of the insured. TMHCC and Tysers exclude pollution from PI.
Cyber/data general exclusion impact on PI cover	✓	✓	✗	✗	✗	✗	✗	TMHCC's general cyber/date exclusion applies to Sections 1–11 ONLY, leaving S12 with bespoke virus/unauthorised-access cover; Tysers' Electronic-Risk exclusion is dis-applied to S8. Yutree's PI carries a BROAD cyber & data-protection exclusion.
Senior-counsel (KC) dispute-resolution clause	🕒	?	✓	✗	✗	✗	✗	Yutree includes a clear King's Counsel arbitration clause for defence/settlement disputes. TMHCC relies on a general mediation/dispute condition; Tysers requires review.

App. 3 — General & liability exclusions (✓ = exclusion applies)

Feature	TMHCC	Tysers	Yutree	Liberty	Allianz	AXA XL	Ent.Elite	Note
Abuse / molestation exclusion (PL)	✓	✗	✓	✗	✗	✓	✗	TMHCC/Yutree/AXA XL exclude abuse; Tysers/Liberty/Allianz/Ent.Elite silent. (Prior review's omission.)
War / nuclear / radioactive contamination	✓	✓	✓	✓	✓	✓	✓	Standard market exclusion present in all six wordings (AXA XL 3.3/3.5, incl. weapons of mass destruction). Broadly equivalent.
Terrorism (property/BI)	⦿	✓	⦿	⦿	⦿	✓	⦿	TMHCC, Yutree, Liberty, Allianz write terrorism back via a dedicated section. Tysers and AXA XL (3.4) EXCLUDE terrorism outright with no buy-back.
Pollution / contamination	✓	✓	✓	✓	✓	✓	✓	Excluded by all with the usual sudden/accidental & defined-peril write-backs (AXA XL: MD exclusion (p) and Liability pollution exclusion). Equivalent.
Asbestos	✓	⦿	✓	✓	✓	✓	✓	Tysers PI has a professional-duty WRITE-BACK (cover where liability arises from negligent advice, GBP 1m, ex-BI). TMHCC, Yutree and AXA XL (3.1, ex-EL) exclude asbestos more strictly.
Cyber / electronic risk (first-party damage & BI)	✓	✓	✓	✓	✓	✓	✓	All exclude cyber-caused damage/BI. KEY DIFFERENCE: TMHCC dis-applies its cyber/date exclusion to Sections 12-15; Tysers dis-applies Electronic Risk to S8 PI. AXA XL's cyber exclusion (3.7) is broad with only a DP Act 2018 carve-out; Yutree's PI carries a broad cyber/data exclusion.
Date recognition / data-processing failure	✓	✓	✓	✓	✓	⦿	✓	Standard 'millennium/date'-style exclusion in the property packages. AXA XL has no separate date clause — subsumed within its broad cyber/electronic-data exclusion. Equivalent in substance.
Communicable disease / pandemic	✓	✗	?	?	?	✓	?	TMHCC and AXA XL (3.8) both carry a BROAD communicable-disease exclusion (applies notwithstanding all other terms). Not identified in Tysers; Yutree/Liberty/Allianz require confirmation. TMHCC is well-protected here (a deliberate restriction).
Sanctions / trade restrictions	✓	✓	✓	✓	✓	✓	✓	All carry a sanctions clause (AXA XL 4.4). TMHCC has both a Trading-Sanctions and an International-Sanctions clause. Equivalent.
Northern Ireland (civil commotion) / sonic bangs	?	✓	?	✓	✓	?	?	Standard UK property-package carve-outs present in Tysers/Liberty/Allianz; TMHCC and AXA XL treatment within property sections requires confirmation.

App. 4 — PI-specific exclusions (✓ = applies; na = no PI)

Feature	TMHCC	Tysers	Yutree	Liberty	Allianz	AXA XL	Ent.Elite	Note
Contractual / assumed liability	✓	✓	✓	—	—	—	—	Excluded by all three media wordings, with the standard write-back for liability that would exist absent the contract. Equivalent.
Deliberate / reckless / dishonest acts (with employee write-back)	✓	✓	✓	—	—	—	—	All exclude deliberate/dishonest acts of the insured but write back dishonest acts of employees. Equivalent.
Bodily injury / property damage	✓	✓	✓	—	—	—	—	Excluded unless arising from negligent publication/advice. Equivalent.
Fines / penalties / punitive damages	⦿	?	?	—	—	—	—	TMHCC excludes non-compensatory damages BUT writes back libel/slander/defamation awards and punitive damages where the law permits — a favourable carve-back. (Note: AXA XL's general policy excludes punitive/exemplary damages and fines ABSOLUTELY, with no write-back — TMHCC is

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								clearer/broader.)
Prior known claims / circumstances	✓	✓	✓	—	—	—	—	Excluded by all three (claims-made hygiene). Equivalent.
Insolvency / financial failure of the insured	✓	?	?	—	—	—	—	TMHCC expressly excludes claims arising from its own insolvency/liquidation. Competitor positions require review.
USA / Canada jurisdiction	✓	✗	●	—	—	—	—	TMHCC excludes actions brought / governed outside the stated Jurisdiction (default ex-US/Canada). Tysers PI is WORLDWIDE. Yutree restricts US/Canada exposure. Competitor (Tysers) broader.
Patent infringement	✓	✗	✓	—	—	—	—	TMHCC and Yutree exclude patents; Tysers covers patent infringement. TMHCC sensibly more restrictive.
Cyber act / breach of data-protection law (within PI)	✗	✗	✓	—	—	—	—	Yutree's PI carries a broad cyber-act & data-protection-law exclusion. TMHCC instead grants bespoke cover (virus, unauthorised access, DP defence costs) — TMHCC broader/clearer.
Pollution / seepage	✓	✓	●	—	—	—	—	TMHCC and Tysers exclude pollution from PI; Yutree grants a limited write-back for the insured's own negligent act/error/omission.

App. 5 — Conditions & claims obligations

Condition	TMHCC	Tysers	Yutree	Liberty	Allianz	AXA XL	Ent.Elite
Claim notification	Express CONDITION PRECEDENT to liability — notify as soon as practicable (S1–11); S13 within 28 days; S12 claims-made notification during the period. Among the most protective drafting.	Notification under Special Condition 1; S8 PI is claims-made.	Claims-made; defined notification conditions for claims and claim circumstances.	Forward every claim document immediately on receipt.	Forward claim/notify per claims condition; potential proportionate remedy.	Written notice to Insurer per Policy Conditions; claims co-operation conditions.	Written notice to the Insurer as soon as reasonably practicable per the General/Claims Conditions; claim documents forwarded.
Basis of cover (PI/Media)	S12 Media Liability is claims-made with Retroactive Date; defence-costs in addition.	S8 PI/E&O claims-made; defence costs in addition; Excess does not apply to defence costs.	PI-Media claims-made; retroactive date; defence costs in addition.	n/a — no PI/media section.	n/a — no PI/media section.	n/a — no PI/media section.	n/a — no PI/media section.
Reasonable precautions / cyber-security	S12 imposes detailed computer-security conditions (firewall, AV, password change/60 days, encryption, logging, back-ups) and 'reasonable steps to avoid loss'.	Loss-of-documents condition requires back-ups at least every 7 days off-site.	Reasonable-precautions and security expectations apply.	General 'your duties' / reasonable precautions section.	Reasonable-precautions and maintenance conditions.	Reasonable-precautions / maintenance and duty-of-care conditions.	Reasonable-precautions and risk-improvement conditions; specific Money security, carryings and key conditions.
Change of control	S12 cover ceases on a change of control unless notified and agreed by endorsement.	Requires review.	Addressed via subsidiary creation/acquisition cover.	n/a (no PI).	n/a (no PI).	n/a (no PI).	n/a (no PI).
Premium payment	S12 premium payment clause — 60 days, with 15-day cancellation notice.	Per policy/General Conditions.	Premium-adjustment condition with cancellation rights.	Standard cancellation section.	Standard cancellation provisions.	Standard premium / cancellation provisions (Policy Conditions).	Premium-instalment and cancellation provisions.
Fair presentation (Insurance Act 2015)	Duty of fair presentation applies (UK).	Duty of fair presentation; Zurich data terms.	Express duty of fair presentation.	'Your duties' — fair presentation.	Fair-presentation conditions.	Insurer relies on information provided; fair-presentation basis.	Duty of fair presentation.
Defence / dispute resolution	Insurer consent required (CP); general mediation/dispute condition (England & Wales).	Insurer controls defence; consent to settle.	Clear King's Counsel arbitration clause for defence/settlement disputes — strong drafting.	Insurer conduct-of-claims rights.	Insurer conduct-of-claims rights.	Insurer conduct-of-claims rights.	Insurer conduct-of-claims rights.

App. 6 — Key Media/PI sub-limits

Sub-limit	TMHCC	Tysers	Yutree	Liberty	Allianz	AXA XL	Ent.Elite
Primary limit of indemnity	Per Schedule	Per Schedule	Per Schedule	n/a	n/a	n/a	n/a
Virus transmission	GBP 500,000	GBP 250,000	Within cyber excl.	n/a	n/a	n/a	n/a
Data-protection defence costs	GBP 250,000	—	Excluded	n/a	n/a	PL: DP Act 2018 ext.	n/a
Criminal / statutory defence	— (DP only)	GBP 1,000,000	GBP 250,000	n/a	n/a	n/a	n/a
Reputation management	GBP 250,000	—	GBP 250,000	n/a	n/a	n/a	n/a
Withdrawal of content	GBP 250,000	—	GBP 250,000	n/a	n/a	n/a	n/a
Pursue insured's own IP	GBP 25,000	—	Limit	n/a	n/a	n/a	n/a
Loss of documents	Per Schedule	GBP 1,000,000	Limit (GBP 500 xs)	n/a	n/a	n/a	n/a
Representation costs	DP only	GBP 25,000	Within crim. defence	n/a	n/a	n/a	n/a
Court attendance (per day)	GBP 500 / 250	GBP 500 / 250 (25k agg)	Review	n/a	n/a	n/a	n/a
Distributors & purchasers	—	5x limit	—	n/a	n/a	n/a	n/a

App. 7 — TMHCC genuine strengths (wording-supported)

- **Widest section count in the peer group** — The only wording among the six offering all 15 sections in a single contract — a genuine 'one-stop' media & entertainment package. Three of the six competitors (Liberty, Allianz and AXA XL) carry NO media/PI cover at all.
- **Four sections no competitor offers** — Loss of Licence (S10), Commercial Legal Expenses (S13), Management Liability (S14) and a standalone Cyber-liability section (S15 CyberGuard) are unique to TMHCC across all six competitors.
- **Standalone cyber that is genuine liability cover** — CyberGuard provides multimedia, security & privacy, privacy-regulatory defence & penalties and PCI DSS cover — not merely first-party breakdown, and not a bare cyber EXCLUSION (as in AXA XL).
- **Broad, well-extended Media Liability (S12)** — Wide 'any other civil liability' grant plus employee-dishonesty write-back, Data-Protection Defence Costs (GBP 250k), Reputation Management (GBP 250k), Withdrawal of Content (GBP 250k), IP-pursuit costs (GBP 25k) and M&A auto-acquisition.
- **Clean exclusion architecture** — The general cyber/date exclusion is dis-applied to Sections 12–15, so the liability sections are governed by their own bespoke terms — avoiding the 'silent-cyber strip' seen in a competitor PI section and AXA XL's blanket cyber exclusion.
- **Favourable fines/penalties carve-back** — Non-compensatory damages are written back for libel/slander/defamation awards and for punitive damages where the law permits payment — AXA XL, by contrast, excludes punitive/fines absolutely.
- **Protective, clearly-drafted claims architecture** — Claim notification is an express condition precedent; aggregation, retroactive date and territorial/jurisdiction terms are clearly defined.

App. 8 — Areas competitors are broader

- **Worldwide PI territory (Tysers)** — Tysers PI/E&O is worldwide; TMHCC S12 is limited to the Schedule Geographical Limits and excludes actions brought outside the stated Jurisdiction.
- **Patent infringement (Tysers)** — Tysers covers patent infringement within IP; TMHCC (and Yutree) exclude it.
- **Statutory / criminal defence costs (Tysers & Yutree)** — Tysers funds Bribery/Corporate-Manslaughter/H&S/CDM defence (GBP 1m); Yutree funds criminal-prosecution defence (GBP 250k). TMHCC S12 funds only data-protection defence (broader criminal cover sits in S13/S14).
- **Distributors & purchasers (Tysers)** — Tysers extends PI to purchasers/co-producers/distributors of the insured's media material (5x limit) — absent from TMHCC.
- **Journalistic source protection (Tysers)** — Tysers funds legal costs to challenge a subpoena requiring disclosure of a source — absent from TMHCC.

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- **Personal Accident & Business Travel (Tysers; Yutree assault)** — Tysers has an extensive PA/business-travel section; Yutree covers PA assault. TMHCC, Liberty, Allianz and AXA XL have no PA section.
- **Granular BI heads (Allianz)** — Allianz splits Increased Cost of Working and Book Debts into discrete sections — a presentational advantage.
- **Standalone Computer Breakdown (Yutree)** — Yutree offers a dedicated computer-breakdown section; TMHCC consolidates IT breakdown within S1/S2 — confirm it is explicit.
- **Limited pollution write-back in PI (Yutree)** — Yutree grants a limited pollution write-back for the insured's own negligent act/error/omission.
- **KC dispute-resolution clause (Yutree)** — Yutree's clear King's Counsel arbitration clause for defence disputes is a drafting-clarity advantage.

App. 9 — Method & assumptions

- All six wordings were parsed in full to text; coverage was compared by FUNCTION, not heading, because the wordings are structured differently.
- Section maps were taken from each policy's contents/insuring clauses; feature-level findings from the operative clauses, extensions, conditions and exclusions actually read.
- Where a clause could not be verified from the wording it is marked 'requires review' rather than assumed.
- No cover has been invented; competitor marketing language has not been treated as cover.
- TMHCC is recorded as having a gap ONLY where at least one competitor genuinely provides broader, clearer or materially useful cover.
- Exclusions, limits, conditions, warranties and write-backs were reviewed in detail and are not softened.
- Liberty, Allianz and AXA XL are property / BI / liability combined packages and contain NO media/PI/E&O, production-indemnity, cyber-liability, legal-expenses or management-liability sections.
- All six competitor wordings have now been mapped, including AXA XL (the fifth wording).
- Competitor names are used as supplied; 'capacity' insurers are noted from the wordings (Zurich for Tysers; AXA for Yutree; XL Catlin/AXA XL for the AXA XL wording).
- Primary limits, excesses and any 'insured/not insured' section toggles are schedule-driven and were not supplied — section availability reflects the wording booklets only.
- Allianz's 'Personal Accident' section is referenced in its exclusions but not in the provided cover list — treated as 'requires review'.
- AXA XL provides Money as a sub-limited specification within Material Damage (not a standalone section); shown as 'partial'.
- Page/clause citations are available in the working text extracts and can be added on request.